FOR BUSINESS OWNERS, FAMILY OFFICES & NRIS · 30 OCTOBER 2026

5 moves that affect your business this week.

- NCLT Mumbai clears Nami Capital's merger into Pradeep Metals
- SEBI censures Axis Capital over Sojo Infotel repayment risk
- Supreme Court sinks reassessments with no scrutiny notice
- ED attaches Jauhar University property valued at ₹426.46 crore
- NCLT Indore holds a hospital director to a personal guarantee

SWIPE →

PROMOTER RESTRUCTURING · NCLT MUMBAI

NCLT Mumbai clears Nami Capital merger into Pradeep Metals

On 29 October 2026 Pradeep Metals disclosed that NCLT Mumbai, the company law tribunal, had sanctioned the merger of its lead promoter Nami Capital Private Limited, previously reported at a 59.03% holding, into the listed company. The scheme takes effect only when the certified order is filed with the Registrar of Companies, and the accessible summary discloses no cash consideration or exchange ratio.

WHO IS EXPOSED · WHAT TO CHECK

Listed company promoters holding through a private vehicle, and minority investors in such companies, are exposed. This week, check that your board papers and disclosures separate tribunal sanction from the date a scheme actually takes effect.

SECURITIES · SEBI

SEBI censures Axis Capital over Sojo Infotel repayment risk

On 28 October 2026 SEBI issued a censure, a formal regulatory reprimand and not a newly imposed ₹260 crore fine, against Axis Capital, holding that its obligation to ensure repayment of Sojo Infotel's ₹260 crore debentures was guarantee-like credit support and not permissible underwriting. The debentures were backed in part by a pledge of 26% of Lava International shares held by Sojo's promoters, and Axis Capital paid ₹166.84 crore into the repayment escrow in March 2024.

WHO IS EXPOSED · WHAT TO CHECK

Promoters and CFOs raising debt against pledged shares are exposed, because SEBI examined who actually carried repayment risk. This week, check any arranger clause that obliges a banker to buy pledged shares or fund repayment.

TAX · SUPREME COURT

Supreme Court voids reassessments where scrutiny notice never issued

On 28 October 2026 in Principal Commissioner of Income Tax, Bhubaneswar v. Orissa Mining Corporation Ltd., Justices Sanjay Kumar and Sanjeev Sachdeva dismissed the Revenue's appeals, holding that a reassessment cannot proceed without the mandatory scrutiny notice under Section 143, sub-section 2. The Court held that a taxpayer's participation does not cure complete non-issuance under Section 292BB, and the reassessments were set aside.

WHO IS EXPOSED · WHAT TO CHECK

Business owners, family offices and NRIs with open or past reassessments are exposed to missing a strong defence. This week, pull each file and confirm whether the scrutiny notice was actually issued, not merely whether you attended hearings.

ENFORCEMENT · ED LUCKNOW

ED attaches Jauhar University property valued at ₹426.46 crore

On 28 October 2026 the ED's Lucknow office announced provisional attachment, a temporary hold and not final confiscation, of Mohammad Ali Jauhar University's land and buildings in Rampur under the money laundering law, in a matter involving the Maulana Mohammad Ali Jauhar Trust, Mohammad Azam Khan and others. The attachment value is ₹426.46 crore against a separately estimated market value of nearly ₹1,170 crore, and ED's claims of forced land acquisition and contractor payments routed as donations remain allegations.

WHO IS EXPOSED · WHAT TO CHECK

Families and promoters who run trusts holding land or receiving large donations are exposed. This week, check that each major donation to your trust traces to a documented source and that land title papers are complete.

PERSONAL INSOLVENCY · NCLT INDORE

NCLT Indore enforces director's guarantee despite related-party objection

Reported on 29 October 2026 with the order date not stated, NCLT Indore in Sukhkarta Medicose v. Anil Bandi admitted a personal insolvency petition against Dr Anil Kumar Bandi, holding that the related-party character of the underlying transaction did not invalidate an independently executed personal guarantee. The debt involving Greater Kailash Hospitals Private Limited was a ₹2.10 crore pharmacy security deposit converted into an unsecured loan at 12% annual interest, and the tribunal declared a moratorium, a pause on recovery action.

WHO IS EXPOSED · WHAT TO CHECK

Promoters, directors and family members who have personally guaranteed group or related-party debt are exposed. This week, list every live guarantee you have signed and the debt behind each one.

THE THROUGH-LINE

In each of these matters the outcome turned on what the paper and the process actually did, not on the label attached to them. Before you rely on any structure, guarantee, notice or trust arrangement, check what it really does and who is really on the hook.

If any of these touches your company or family, message me the number. I will tell you where you stand.

OWN THE BRIEF

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